

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 1202

Introduced by Clouse, 37.

Read first time January 21, 2026

Committee:

1 A BILL FOR AN ACT relating to ignition interlock permits; to amend
2 sections 60-6,211.11 and 83-1,127.02, Reissue Revised Statutes of
3 Nebraska, section 60-497.01, Revised Statutes Cumulative Supplement,
4 2024, and sections 60-4,118.06, 60-601, and 60-6,211.05, Revised
5 Statutes Supplement, 2025; to provide penalties for violations
6 relating to ignition interlock devices and ignition interlock
7 permits; to provide powers and duties to the Department of Motor
8 Vehicles; to reorganize and transfer provisions; to eliminate
9 obsolete provisions; to harmonize provisions; and to repeal the
10 original sections.
11 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Section 60-497.01, Revised Statutes Cumulative
2 Supplement, 2024, is amended to read:

3 60-497.01 (1) An abstract of the court record of every case in which
4 a person is convicted of violating any provision of the Motor Vehicle
5 Operator's License Act, the Motor Vehicle Safety Responsibility Act, the
6 Nebraska Rules of the Road, or section 28-524 or 83-1,127.02, as from
7 time to time amended by the Legislature, or any traffic regulations in
8 city or village ordinances shall be transmitted within thirty days of
9 sentencing or other disposition by the court to the director. Any
10 abstract received by the director more than thirty days after the date of
11 sentencing or other disposition shall be reported by the director to the
12 State Court Administrator.

13 (2)(a) {2} Any person who violates ~~violating~~ section 28-306, 28-394,
14 28-1254, 60-696, 60-697, 60-6,196, 60-6,197, 60-6,213, or 60-6,214 while
15 ~~who is~~ placed on probation shall be assessed the same points under
16 section 60-4,182 as if such person were not placed on probation. This
17 subdivision does not apply to any person:

18 (i) Whom the ~~unless a court has ordered to that such person shall~~
19 obtain an ignition interlock permit in order to operate a motor vehicle
20 with an ignition interlock device pursuant to section 60-6,211.05; and

21 (ii) Who presents sufficient evidence ~~is presented~~ to the department
22 that such a device is installed.

23 (b)(i) For any other violation, the director shall not assess such
24 person with any points under section 60-4,182 for such violation when the
25 person is placed on probation until the director is advised by the court
26 that such person previously placed on probation has violated the terms of
27 his or her probation and such probation has been revoked.

28 (ii) Upon receiving notice of revocation of probation, the director
29 shall assess to such person the points which such person would have been
30 assessed had the person not been placed on probation. All such points
31 shall be assessed as of the date of the violation.

1 (iii) When a person fails to successfully complete probation, the
2 court shall notify the director immediately.

3 **Sec. 2.** Section 60-4,118.06, Revised Statutes Supplement, 2025, is
4 amended to read:

5 60-4,118.06 (1) A person may apply for an ignition interlock permit
6 by:

7 (a) ~~Submitting to (1) Upon receipt by the director: of~~

8 (i) A ~~(a)~~ a certified copy of a court order issued pursuant to
9 section 60-6,211.05;

10 (ii) A ~~,~~ a certified copy of an order for installation of an
11 ignition interlock device and issuance of an ignition interlock permit
12 pursuant to section 60-6,197.03; ~~,~~

13 (iii) A ~~or~~ a copy of an order from the Board of Pardons pursuant to
14 section 83-1,127.02; ~~,~~ or

15 (iv) A ~~beginning January 1, 2026,~~ a certified copy of a court order
16 or administrative license revocation order from another jurisdiction that
17 substantially complies with sections 60-6,197.03 and 60-6,211.05 and
18 sufficient proof of residence in this state;

19 (b) ~~Submitting to the director sufficient , (b) sufficient~~ evidence
20 that the person has surrendered his or her operator's license to the
21 department and installed an approved ignition interlock device in
22 accordance with such order; ~~,~~ and

23 (c) ~~Paying (c) payment of the fee provided in section 60-4,115 ,~~
24 ~~such person may apply for an ignition interlock permit.~~

25 (2) A person subject to administrative license revocation under
26 sections 60-498.01 to 60-498.04 shall be eligible for an ignition
27 interlock permit as provided in such sections.

28 (3) The director shall issue an ignition interlock permit only for
29 the operation of a motor vehicle equipped with an ignition interlock
30 device.

31 (4) All ignition interlock permits issued pursuant to this section

1 ~~subsection~~ shall indicate that the permit is not valid for the operation
2 of any commercial motor vehicle.

3 (5) ~~(2)~~ Upon expiration of the revocation period or upon expiration
4 of an order issued by the Board of Pardons pursuant to section
5 83-1,127.02, a person may apply to the department in writing for issuance
6 of an operator's license. Regardless of whether the license surrendered
7 by such person under subsection (1) of this section has expired, the
8 person shall apply for a new operator's license pursuant to the Motor
9 Vehicle Operator's License Act.

10 (6) ~~(3)~~ An ignition interlock permit shall not be issued under this
11 section or sections 60-498.01 to 60-498.04 to any person except in cases
12 of a violation of subdivision (3)(b) or (c) of section 28-306,
13 subdivision (3)(b) or (c) of section 28-394, or section 28-1254,
14 60-6,196, 60-6,197, 60-6,197.06, or 60-6,198 or section 6 of this act.

15 (7) ~~(4)~~ The director shall revoke a person's ignition interlock
16 permit issued under this section or sections 60-498.01 to 60-498.04 upon
17 receipt of an (a) abstract of conviction indicating that the person had
18 his or her operating privileges revoked or canceled or (b) administrative
19 order revoking or canceling the person's operating privileges, if such
20 conviction or order resulted from an incident other than the incident
21 which resulted in the application for the ignition interlock permit.

22 **Sec. 3.** Section 60-601, Revised Statutes Supplement, 2025, is
23 amended to read:

24 60-601 Sections 60-601 to 60-6,383 and sections 6 to 9 of this act
25 shall be known and may be cited as the Nebraska Rules of the Road.

26 **Sec. 4.** Section 60-6,211.05, Revised Statutes Supplement, 2025, is
27 amended to read:

28 60-6,211.05 (1) Pursuant to section ~~If an order is granted under~~
29 ~~section 60-6,196 or 60-6,197 and sections 60-6,197.02 and 60-6,197.03 or~~
30 section 6 of this act, ~~a~~ the court may order that the defendant install
31 an ignition interlock device of a type approved by the Director of Motor

1 Vehicles on each motor vehicle operated by the defendant during the
2 period of revocation. Upon sufficient evidence of installation, the
3 defendant may apply to the director for an ignition interlock permit
4 pursuant to section 60-4,118.06. The device shall, without tampering or
5 the intervention of another person, prevent the defendant from operating
6 the motor vehicle when the defendant has an alcohol concentration greater
7 than three-hundredths of one gram or more by weight of alcohol per one
8 hundred milliliters of his or her blood or three-hundredths of one gram
9 or more by weight of alcohol per two hundred ten liters of his or her
10 breath. The Department of Motor Vehicles shall issue an ignition
11 interlock permit to the defendant under section 60-4,118.06 only upon
12 sufficient proof that a defendant has installed an ignition interlock
13 device on any motor vehicle that the defendant will operate during his or
14 her release.

15 (2) If the court orders installation of an ignition interlock device
16 and issuance of an ignition interlock permit pursuant to subsection (1)
17 of this section, the court may also order the use of a continuous alcohol
18 monitoring device and abstention from alcohol use at all times. The
19 device shall, without tampering or the intervention of another person,
20 test and record the alcohol consumption level of the defendant on a
21 periodic basis and transmit such information to probation authorities.

22 ~~(3)(a) Prior to January 1, 2026, any order issued by the court~~
23 ~~pursuant to this section shall not take effect until the defendant is~~
24 ~~eligible to operate a motor vehicle pursuant to subsection (8) of section~~
25 ~~60-498.01. A person shall be eligible to be issued an ignition interlock~~
26 ~~permit allowing operation of a motor vehicle equipped with an ignition~~
27 ~~interlock device if he or she is not subject to any other suspension,~~
28 ~~cancellation, required no-driving period, or period of revocation and has~~
29 ~~successfully completed the ignition interlock permit application process.~~
30 ~~The Department of Motor Vehicles shall review its records and the driving~~
31 ~~record abstract of any person who applies for an ignition interlock~~

1 ~~permit allowing operation of a motor vehicle equipped with an ignition~~
2 ~~interlock device to determine (i) the applicant's eligibility for an~~
3 ~~ignition interlock permit, (ii) the applicant's previous convictions~~
4 ~~under section 60-6,196, 60-6,197, or 60-6,197.06 or any previous~~
5 ~~administrative license revocation, if any, and (iii) if the applicant is~~
6 ~~subject to any required no-drive periods before the ignition interlock~~
7 ~~permit may be issued.~~

8 (3) ~~Any (b) Beginning January 1, 2026, any order issued by the~~
9 ~~court, or issued pursuant to a court order or administrative license~~
10 ~~revocation order from another jurisdiction that substantially complies~~
11 ~~with this section and section 60-6,197.03, shall not take effect until~~
12 ~~the defendant is eligible to operate a motor vehicle pursuant to~~
13 ~~subsection (8) of section 60-498.01. A person shall be eligible to be~~
14 ~~issued an ignition interlock permit allowing operation of a motor vehicle~~
15 ~~equipped with an ignition interlock device if he or she is not subject to~~
16 ~~any other suspension, cancellation, required no-driving period, or period~~
17 ~~of revocation and has successfully completed the ignition interlock~~
18 ~~permit application process. The Department of Motor Vehicles shall,~~
19 ~~before the ignition interlock permit may be issued, review its records~~
20 ~~and the driving record abstract of any person who applies for an ignition~~
21 ~~interlock permit allowing operation of a motor vehicle equipped with an~~
22 ~~ignition interlock device to determine (a) (i) the applicant's~~
23 ~~eligibility for an ignition interlock permit, (b) (ii) the applicant's~~
24 ~~previous convictions under section 60-6,196, 60-6,197, or 60-6,197.06 or~~
25 ~~any previous administrative license revocation, if any, and (c) (iii) if~~
26 ~~the applicant is subject to any required no-drive periods.~~

27 (4)(a) If the court orders an ignition interlock device or the Board
28 of Pardons orders an ignition interlock device under section 83-1,127.02,
29 the court or the Board of Pardons shall order the defendant to apply for
30 an ignition interlock permit as provided in section 60-4,118.06 which
31 indicates that the defendant is only allowed to operate a motor vehicle

1 equipped with an ignition interlock device.

2 (b) Such court order shall remain in effect for a period of time as
3 determined by the court not to exceed the maximum term of revocation that
4 ~~which~~ the court could have imposed according to the nature of the
5 violation and shall allow operation by the defendant of only an ignition-
6 interlock-equipped motor vehicle.

7 (c) Such Board of Pardons order shall remain in effect for a period
8 of time not to exceed any period of revocation the applicant is subject
9 to at the time the application for a reprieve is made.

10 ~~(5) Any person restricted to operating a motor vehicle equipped with~~
11 ~~an ignition interlock device, pursuant to a Board of Pardons order, who~~
12 ~~operates upon the highways of this state a motor vehicle without such~~
13 ~~device or if the device has been disabled, bypassed, or altered in any~~
14 ~~way, shall be punished as provided in subsection (3) of section~~
15 ~~83-1,127.02.~~

16 (5) ~~(6)~~ If a person ordered to use a continuous alcohol monitoring
17 device and abstain from alcohol use pursuant to a court order as provided
18 in subsection (2) of this section violates the provisions of such court
19 order by removing, tampering with, or otherwise bypassing the continuous
20 alcohol monitoring device or by consuming alcohol while required to use
21 such device, he or she shall have his or her ignition interlock permit
22 revoked and be unable to apply for reinstatement for the duration of the
23 revocation period imposed by the court.

24 (6) ~~(7)~~ The director shall adopt and promulgate rules and
25 regulations regarding the approval of ignition interlock devices, the
26 means of installing ignition interlock devices, and the means of
27 administering the ignition interlock permit program.

28 (7)(a) ~~(8)(a)~~ The costs incurred in order to comply with the
29 ignition interlock requirements of this section shall be paid directly to
30 the ignition interlock provider by the person complying with an order for
31 an ignition interlock permit and installation of an ignition interlock

1 device.

2 (b) If the Department of Motor Vehicles has determined the person to
3 be indigent and incapable of paying for the cost of installation,
4 removal, or maintenance of the ignition interlock device in accordance
5 with this section, such costs shall be paid out of the Department of
6 Motor Vehicles Ignition Interlock Fund if such funds are available,
7 according to rules and regulations adopted and promulgated by the
8 department. Such costs shall also be paid out of the Department of Motor
9 Vehicles Ignition Interlock Fund if such funds are available and if the
10 court or the Board of Pardons, whichever is applicable, has determined
11 the person to be indigent and incapable of paying for the cost of
12 installation, removal, or maintenance of the ignition interlock device in
13 accordance with this section. ~~The Department of Motor Vehicles Ignition~~
14 ~~Interlock Fund is created. Money in the Department of Motor Vehicles~~
15 ~~Ignition Interlock Fund may be used for transfers to the General Fund at~~
16 ~~the direction of the Legislature. On October 1, 2017, or as soon~~
17 ~~thereafter as administratively possible, the State Treasurer shall~~
18 ~~transfer twenty-five thousand dollars from the Department of Motor~~
19 ~~Vehicles Ignition Interlock Fund to the Violence Prevention Cash Fund. On~~
20 ~~October 1, 2018, or as soon thereafter as administratively possible, the~~
21 ~~State Treasurer shall transfer twenty-five thousand dollars from the~~
22 ~~Department of Motor Vehicles Ignition Interlock Fund to the Violence~~
23 ~~Prevention Cash Fund. Any money in the Department of Motor Vehicles~~
24 ~~Ignition Interlock Fund available for investment shall be invested by the~~
25 ~~state investment officer pursuant to the Nebraska Capital Expansion Act~~
26 ~~and the Nebraska State Funds Investment Act.~~

27 (9)(a)(i) ~~An ignition interlock service facility shall notify the~~
28 ~~appropriate district probation office or the appropriate court, as~~
29 ~~applicable, of any evidence of tampering with or circumvention of an~~
30 ~~ignition interlock device, or any attempts to do so, when the facility~~
31 ~~becomes aware of such evidence. Failure of the facility to provide~~

1 notification as provided in this subdivision is a Class V misdemeanor.

2 ~~(ii) An ignition interlock service facility shall notify the~~
3 ~~Department of Motor Vehicles, if the ignition interlock permit is issued~~
4 ~~pursuant to sections 60-498.01 to 60-498.04, of any evidence of tampering~~
5 ~~with or circumvention of an ignition interlock device, or any attempts to~~
6 ~~do so, when the facility becomes aware of such evidence. Failure of the~~
7 ~~facility to provide notification as provided in this subdivision is a~~
8 ~~Class V misdemeanor.~~

9 ~~(b) If a district probation office receives evidence of tampering~~
10 ~~with or circumvention of an ignition interlock device, or any attempts to~~
11 ~~do so, from an ignition interlock service facility, the district~~
12 ~~probation office shall notify the appropriate court of such violation.~~
13 ~~The court shall immediately schedule an evidentiary hearing to be held~~
14 ~~within fourteen days after receiving such evidence, either from the~~
15 ~~district probation office or an ignition interlock service facility, and~~
16 ~~the court shall cause notice of the hearing to be given to the person~~
17 ~~operating a motor vehicle pursuant to an order under subsection (1) of~~
18 ~~this section. If the person who is the subject of such evidence does not~~
19 ~~appear at the hearing and show cause why the order made pursuant to~~
20 ~~subsection (1) of this section should remain in effect, the court shall~~
21 ~~rescind the original order. Nothing in this subsection shall apply to an~~
22 ~~order made by the Board of Pardons pursuant to section 83-1,127.02.~~

23 ~~(8) (10)~~ Notwithstanding any other provision of law, the issuance of
24 an ignition interlock permit by the Department of Motor Vehicles under
25 section 60-498.01 or an order for the installation of an ignition
26 interlock device and ignition interlock permit made pursuant to
27 subsection (1) of this section as part of a conviction, as well as the
28 administration of such court order by the Office of Probation
29 Administration for the installation, maintenance, and removal of such
30 device, as applicable, shall not be construed to create an order of
31 probation when an order of probation has not been issued.

1 **Sec. 5.** Section 60-6,211.11, Reissue Revised Statutes of Nebraska,
2 is amended to read:

3 60-6,211.11 (1) A person ordered by the Department of Motor Vehicles
4 to operate only motor vehicles equipped with an ignition interlock device
5 shall not, while such order is in effect, operate a motor vehicle:

6 (a) That is not equipped with an ignition interlock device;

7 (b) That is equipped with an ignition interlock device that has been
8 disabled, bypassed, or altered in any way; or

9 (c) Without obtaining an ignition interlock permit.

10 (2)(a) Except as provided in subdivision (2)(b) of this section, a
11 violation of subsection (1) of this section is a Class I misdemeanor.

12 (b) A violation of subsection (1) of this section is a Class IV
13 felony if the person:

14 (i) Operated such motor vehicle while such person had a
15 concentration of two-hundredths of one gram or more by weight of alcohol
16 per one hundred milliliters of his or her blood or a concentration of
17 two-hundredths of one gram or more by weight of alcohol per two hundred
18 ten liters of his or her breath; or

19 (ii) Refused a chemical test of his or her blood, breath, or urine.

20 ~~(1) Except as provided in subsection (2) of this section, any person~~
21 ~~ordered by a court or the Department of Motor Vehicles to operate only~~
22 ~~motor vehicles equipped with an ignition interlock device is guilty of a~~
23 ~~Class I misdemeanor if he or she (a) tampers with or circumvents and then~~
24 ~~operates a motor vehicle equipped with an ignition interlock device~~
25 ~~installed under the court order or Department of Motor Vehicles order~~
26 ~~while the order is in effect or (b) operates a motor vehicle which is not~~
27 ~~equipped with an ignition interlock device in violation of the court~~
28 ~~order or Department of Motor Vehicles order.~~

29 ~~(2) Any person ordered by a court or the Department of Motor~~
30 ~~Vehicles to operate only motor vehicles equipped with an ignition~~
31 ~~interlock device is guilty of a Class IV felony if he or she (a)(i)~~

~~1 tampers with or circumvents and then operates a motor vehicle equipped
2 with an ignition interlock device installed under the court order or
3 Department of Motor Vehicles order while the order is in effect or (ii)
4 operates a motor vehicle which is not equipped with an ignition interlock
5 device in violation of the court order or Department of Motor Vehicles
6 order and (b) operates the motor vehicle as described in subdivision (a)
7 (i) or (ii) of this subsection when he or she has a concentration of two-
8 hundredths of one gram or more by weight of alcohol per one hundred
9 milliliters of his or her blood or a concentration of two-hundredths of
10 one gram or more by weight of alcohol per two hundred ten liters of his
11 or her breath.~~

12 (3) Any person who otherwise operates a motor vehicle equipped with
13 an ignition interlock device in violation of the requirements of the
14 court order or Department of Motor Vehicles order under which the device
15 was installed shall be guilty of a Class III misdemeanor.

~~16 (4) Any person who has applied for and received a 24/7 sobriety
17 program permit and operates a motor vehicle when the person has a
18 concentration of two-hundredths of one gram or more by weight of alcohol
19 per one hundred milliliters of the person's blood or a concentration of
20 two-hundredths of one gram or more by weight of alcohol per two hundred
21 ten liters of the person's breath, or who refuses a chemical test, shall
22 be guilty of a Class III misdemeanor.~~

23 **Sec. 6.** (1) For purposes of this section, active revocation order
24 means a court order to operate only motor vehicles equipped with an
25 ignition interlock device, which order was in effect during the most
26 recent violation of this section. In the event of multiple orders, such
27 order shall be the longest of any such orders.

28 (2) A person ordered by a court to operate only motor vehicles
29 equipped with an ignition interlock device shall not, while such order is
30 in effect, operate a motor vehicle:

31 (a) That is not equipped with an ignition interlock device;

1 (b) That is equipped with an ignition interlock device that has been
2 disabled, bypassed, or altered in any way; or

3 (c) Without obtaining an ignition interlock permit.

4 (3)(a) Except as provided in subdivision (3)(b) of this section, a
5 violation of subsection (2) of this section is a Class I misdemeanor.

6 (b) A violation of subsection (2) of this section is a Class IV
7 felony if the person:

8 (i) Operated such motor vehicle while such person had a
9 concentration of two-hundredths of one gram or more by weight of alcohol
10 per one hundred milliliters of his or her blood or a concentration of
11 two-hundredths of one gram or more by weight of alcohol per two hundred
12 ten liters of his or her breath; or

13 (ii) Refused a chemical test of his or her blood, breath, or urine.

14 (4)(a) For a first violation of subsection (2) of this section, the
15 court shall, as a part of the judgment of conviction, order that the
16 revocation of such person's operator's license be extended for a period
17 of ninety days. Such extension shall begin on a date selected by the
18 court.

19 (b)(i) For a second or subsequent violation of this section, the
20 court shall, as a part of the judgment of conviction, order that either:

21 (A) The active revocation order be restarted, with such revocation
22 period to begin on the date of sentencing; or

23 (B) The revocation of such person's operator's license be extended
24 for a period of one year from a date selected by the court.

25 (ii) The court shall select the option provided in subdivision (4)
26 (b) of this section that results in a longer revocation period.

27 (c) A revocation order issued under this subsection shall require
28 that the person apply for an ignition interlock permit pursuant to
29 section 60-6,211.05 for the revocation period and have an ignition
30 interlock device installed on any motor vehicle he or she operates during
31 the revocation period.

1 (5) Any person who otherwise operates a motor vehicle equipped with
2 an ignition interlock device in violation of the requirements of the
3 court order under which the device was installed shall be guilty of a
4 Class III misdemeanor.

5 **Sec. 7.** (1) If an ignition interlock service facility becomes aware
6 of any evidence that a person has disabled, bypassed, or altered in any
7 way an ignition interlock device, or attempted to do so, the facility
8 shall notify the appropriate authority as provided in this section.

9 (2) In the case of an ignition interlock device installed pursuant
10 to:

11 (a) A court order, the facility shall notify the appropriate
12 district probation office or the appropriate court, as applicable;

13 (b) An order of the Department of Motor Vehicles, the facility shall
14 notify the department; or

15 (c) An order of the Board of Pardons, the facility shall notify the
16 board.

17 (3) The facility shall also notify the county attorney of the county
18 in which the violation occurred.

19 (4) A facility shall provide the notification required by this
20 section when the facility becomes aware of such evidence.

21 (5) Failure to provide the notification required by this section is
22 a Class V misdemeanor.

23 (6) If a court receives notice that a probationer has disabled,
24 bypassed, or altered in any way an ignition interlock device, or
25 attempted to do so, the court shall immediately schedule an evidentiary
26 hearing to be held within fourteen days after receiving such evidence.
27 The court shall cause notice of the hearing to be given to the
28 probationer. If the probationer does not appear at the hearing and show
29 cause why his or her ignition interlock permit should remain in effect,
30 the court shall order such permit to be revoked.

31 **Sec. 8.** (1) A person who has applied for and received a 24/7

1 sobriety program permit shall not:

2 (a) Operate a motor vehicle when the person has a concentration of
3 two-hundredths of one gram or more by weight of alcohol per one hundred
4 milliliters of the person's blood or a concentration of two-hundredths of
5 one gram or more by weight of alcohol per two hundred ten liters of the
6 person's breath; or

7 (b) Refuse a chemical test of his or her blood, breath, or urine.

8 (2) A violation of this section is a Class IV felony.

9 **Sec. 9.** (1) The Department of Motor Vehicles Ignition Interlock
10 Fund is created. The Department of Motor Vehicles shall administer the
11 fund. The fund may receive money from fees pursuant to section 60-4,115.
12 Money in the fund may be used for transfers to the General Fund at the
13 direction of the Legislature and as specified in section 60-6,211.05.

14 (2) Any money in the Department of Motor Vehicles Ignition Interlock
15 Fund available for investment shall be invested by the state investment
16 officer pursuant to the Nebraska Capital Expansion Act and the Nebraska
17 State Funds Investment Act.

18 **Sec. 10.** Section 83-1,127.02, Reissue Revised Statutes of Nebraska,
19 is amended to read:

20 83-1,127.02 (1) The Board of Pardons may, in its sole discretion,
21 when granting a reprieve to any person who has made application pursuant
22 to section 60-6,209, order such person to obtain an ignition interlock
23 permit and to operate only motor vehicles equipped with an ignition
24 interlock device approved by the Director of Motor Vehicles. The Board of
25 Pardons may order the person to hold the ignition interlock permit and
26 use an ignition interlock device for a period of time not to exceed any
27 period of revocation the applicant is subject to at the time the
28 application for a license reinstatement is made.

29 (2) Any person ordered by the Board of Pardons to operate only motor
30 vehicles equipped with such an ignition interlock device shall make
31 application to the director for the issuance of an ignition interlock

1 permit pursuant to section 60-4,118.06.

2 (3) A person ordered by the Board of Pardons to operate only motor
3 vehicles equipped with an ignition interlock device shall not, while such
4 order is in effect, operate a motor vehicle:

5 (a) That is not equipped with an ignition interlock device;

6 (b) That is equipped with an ignition interlock device that has been
7 disabled, bypassed, or altered in any way; or

8 (c) Without obtaining an ignition interlock permit.

9 (4)(a) Except as provided in subdivision (4)(b) of this section, a
10 violation of subsection (3) of this section is a Class I misdemeanor.

11 ~~(3)(a) Except as provided in subdivision (3)(b) of this subsection,~~
12 ~~any such person restricted to operating a motor vehicle equipped with~~
13 ~~such an ignition interlock device is guilty of a Class I misdemeanor if~~
14 ~~he or she (i) operates upon the highways of this state a motor vehicle~~
15 ~~without such an ignition interlock device, (ii) operates a motor vehicle~~
16 ~~equipped with such an ignition interlock device which has been disabled,~~
17 ~~bypassed, or altered in any way, or (iii) operates a motor vehicle~~
18 ~~equipped with such an ignition interlock device without obtaining an~~
19 ~~ignition interlock permit.~~

20 (b) A violation of subsection (3) of this section is a Class IV
21 felony if the person operated such motor vehicle while such person had

22 ~~(b) Any such person restricted to operating a motor vehicle equipped with~~
23 ~~such an ignition interlock device is guilty of a Class IV felony if he or~~
24 ~~she (i)(A) operates upon the highways of this state a motor vehicle~~
25 ~~without such an ignition interlock device, (B) operates a motor vehicle~~
26 ~~equipped with such an ignition interlock device which has been disabled,~~
27 ~~bypassed, or altered in any way, or (C) operates a motor vehicle equipped~~
28 ~~with such an ignition interlock device without obtaining an ignition~~
29 ~~interlock permit and (ii) operates the motor vehicle as described in~~
30 ~~subdivision (i)(A), (B), or (C) of this subdivision when he or she has a~~
31 ~~concentration of two-hundredths of one gram or more by weight of alcohol~~

1 per one hundred milliliters of his or her blood or a concentration of
2 two-hundredths of one gram or more by weight of alcohol per two hundred
3 ten liters of his or her breath.

4 ~~(5)~~ ~~(4)~~ The court shall, as a part of the judgment of conviction for
5 a violation described in of subdivision ~~(4)(b)~~ ~~(3)(b)~~ of this section,
6 order such person not to drive any motor vehicle for any purpose for a
7 period of fifteen years from the date ordered by the court. The court
8 shall also order that the operator's license of such person be revoked
9 for a like period. The revocation shall be administered upon sentencing,
10 upon the final judgment of any appeal or review, or upon the date that
11 any probation is revoked.

12 **Sec. 11.** Original sections 60-6,211.11 and 83-1,127.02, Reissue
13 Revised Statutes of Nebraska, section 60-497.01, Revised Statutes
14 Cumulative Supplement, 2024, and sections 60-4,118.06, 60-601, and
15 60-6,211.05, Revised Statutes Supplement, 2025, are repealed.